

BEFORE THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY
AUTHORITY, QUETTA.

PRC APPEAL No.10/2025

M/S AK Mehterzai Government Contractor
Through its Authorized person
Haji Muhammad Ibrahim

Appellant...

VERSUS

- 1) Secretary Home & Tribal Affairs Department.
- 2) Chairman CRC.
- 3) Assistant Director PDMA.
- 4) Natural calamities & other Disaster Management.

Respondents...

APPEAL UNDER RULE 56-A AGAINST THE TSE No
242505699083

Decision Dated:28-08-2025.

This Appeal received in the office of the Registrar of PRC on 26-08-2025 and came before the Chairman of the Procurement Review Committee on

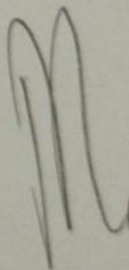
the same day with the objections from the office of the Registrar regarding maintainability and limitation of filing of the instant Appeal.

The Brief facts of the Appeal are that the Appellant participated in the bid process under TSE No. 242505699083 for "**Provision of Facilities and Maintenance of PDMA Head Office Package II**" and bidding procedure set for the bidding process was single stage two envelope procedure.

The Appellant is of the view that he participated in the bidding process but was declared non-eligible despite fulfilling all requirements. However, the Appellant states to have filed his Grievance Application before the Complaint Rederassal Committee (CRC) under Rule 56 which he states, was decided in the absence of the Appellant, and the Committee did not bother to intimate the Appellant and the Procuring Agency issued the Work Orders to the qualified bidders as per their impugned evaluation.

Record perused. It transpired on examining the evaluation report that the Appellant has been disqualified on seven different grounds. The Appellant has attached his CRC unreceived application dated: 08-06-2025 with the Appeal dated 26-08-2025 and also attached an Affidavit regarding non decision on the Appeal of the Appellant. It transpires from the contents of Appeal that the Appellant admits that the CRC has passed its decision, which is a contradiction with his own affidavit stating indecisiveness of the CRC and probable concealment of fact on the part of the Appellant.

Thereafter the Appellant for want of knowledge approached the Hon'ble High Court of Balochistan for rederassal of his grievance but the Hon'ble High

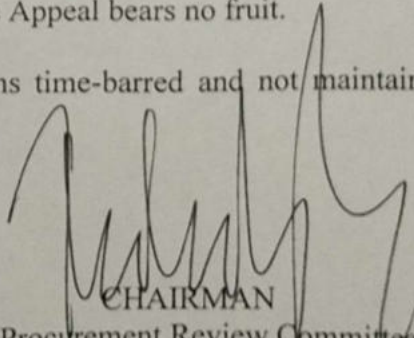


Court of Balochistan vide Order Dated 07-07-2025 directed the Appellant to approach the relevant forum of PRC for rederassal of his grievance.

However, the Appellant approached this Committee after a lapse of one month and 26 days. It is important to mention here that the limitation for filing of the Appeal before the (Procurement Review Committee) PRC is Five days after the decision of CRC or lapse of 18 days of filing of Appeal before the Complaint Rederassal Committee (CRC), if the CRC fails to arrive at any decision within the stipulated time.

At this stage when a considerable time has elapsed for filing of this Appeal, this Appeal becomes time barred even if the time limit is considered after the order of the Hon'ble High Court. The Appellant also filed his Affidavit with the Appeal that the CRC has failed to arrive at any decision but on the other hand in Para No. 6 of his Appeal, the Appellant stated that the CRC has passed its decision but did not communicate the same to the Appellant, which is a mis-statement by the Appellant. As per the version of the Appellant the work orders have also been issued to the qualified bidders, therefore this Appeal bears no fruit.

On these grounds this Appeal seems time-barred and not maintainable, hence dismissed.


CHAIRMAN
Public Procurement Review Committee

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

29/8/2025